From	Robert Samuel White
To	OPRD Public Records
Cc	Director Lisa Sumption
Date	November 15, 2025, 9:30 AM PT
Subject	**Notice of Violation - Failure to Respond to Public Records Request (Submitted August 22, 2025)**
Document	01KA45NDXG8VA4XB2YG7M8G0F5

Dear Public Records Officer and Director Sumption,

On August 22, 2025, I submitted a comprehensive public records request pursuant to Oregon Revised Statutes Chapter 192 seeking documentation related to OPRD volunteer program operations, management practices, and administrative communications.

It has now been 85 days since that request was submitted.

Oregon law is unambiguous regarding agency obligations:

ORS 192.329(1) requires public bodies to acknowledge receipt of a public records request "without unreasonable delay" and to provide a reasonable estimate of time and fees.

ORS 192.329(3) requires completion of requests "within a reasonable time."

ORS 192.338 establishes that failure to respond within a reasonable time constitutes denial of the request.

ORS 192.355 provides statutory remedies including court-ordered compliance and attorney fees.

TIMELINE OF OPRD'S NON-COMPLIANCE

August 22, 2025: Public records request submitted via email

August 28, 2025: OPRD representative contacted me by phone (not in writing) attempting to narrow the scope of the request

August 28, 2025: I declined to limit scope and requested all communications in writing

August 28, 2025 - November 15, 2025: Complete silence from OPRD - no written response, no acknowledgment, no fee estimate, no timeline, no records produced

LEGAL VIOLATIONS

OPRD's conduct constitutes clear violations of Oregon Public Records Law:

Failure to acknowledge receipt in writing as required by ORS 192.329(1)

Failure to provide fee estimate as required by ORS 192.324

Failure to establish reasonable timeline for response

Failure to produce any responsive records within reasonable time

Improper attempt to negotiate scope via phone rather than written correspondence

Ghosting requestor after refusing informal scope limitation

85 days of complete silence is not "reasonable" under any interpretation of Oregon law.

PATTERN OF INSTITUTIONAL OPACITY

This non-response is consistent with OPRD's documented pattern of:

Refusing to investigate substantiated complaints
Avoiding written documentation of institutional decisions
Deploying informal pressure tactics rather than transparent processes
Abandoning accountability when informal methods fail
The same institution that:
Dismissed a volunteer without written documentation of cause
Refused to acknowledge documented evidence of staff misconduct
Provided only vague, legally meaningless responses to formal complaints
Has now ignored a lawful public records request for nearly three months
This is not administrative delay. This is institutional defiance of legal obligations.
DEMAND FOR IMMEDIATE COMPLIANCE
I hereby demand that OPRD:
Immediately acknowledge this public records request in writing
Provide a complete fee estimate for all responsive records
Establish a definite timeline for production of records
Explain in writing the legal basis for 85 days of silence
Produce all responsive records not subject to valid exemptions
Cite specific statutory authority for any claimed exemptions
This demand must be satisfied within 10 business days of receipt of this letter.
NOTIFICATION OF INTENT TO PURSUE LEGAL REMEDIES
If OPRD fails to comply with this demand within 10 business days, I will pursue all available remedies under Oregon law, including:
Filing a petition pursuant to ORS 192.355 to compel disclosure
Seeking attorney fees and costs as provided by statute
Requesting civil penalties for willful violation of public records law
Notifying the Oregon Department of Justice Public Records Advocate
Notifying the Oregon Government Ethics Commission
Referring this matter to the Oregon Legislature's Committee on Conduct
Making this complete record of non-compliance publicly available
PUBLIC INTEREST STATEMENT
The public interest in OPRD's compliance with this request has only intensified since August:
OPRD continues soliciting volunteers while refusing transparency about volunteer management
Budget crisis deepens while agency avoids accountability for institutional dysfunction
Former volunteers continue reporting similar patterns of institutional abuse
Director Sumption's response to my documented complaints established precedent of institutional protection over accountability
The public has a right to know how their state parks agency treats unpaid volunteers, manages taxpayer resources, and responds to substantiated complaints.
FINAL NOTICE
This letter serves as final notice before pursuing formal legal action.

OPRD has demonstrated through silence that it does not intend to comply voluntarily with Oregon Public Records Law. That refusal to comply is itself a matter of significant public interest and will be documented accordingly.

Every day of continued non-compliance strengthens the public record that Oregon State Parks operates with contempt for legal transparency requirements.

You have 10 business days to respond.

All communications regarding this matter must be in writing. I will not participate in phone calls or informal negotiations designed to avoid creating written records.

Preserve all documents.

Sincerely,

Robert Samuel White

https://rswfire.com/honeyman

From	Robert Samuel White
To	[OPRD Public Records]
Date	November 20, 2025, 6:38 PM PT
Subject	**Re: Notice of Violation - Failure to Respond to Public Records Request (Submitted August 22, 2025)**
Document	01KAJ0ZYNGA7P6JNSVVNPYWPGP

Dear [OPRD Public Records],

I acknowledge receipt of your November 20, 2025 email, which includes a screenshot of a document you indicate was posted on August 29, 2025 to an internal portal I do not have access to and was never informed existed.

For over 90 days, OPRD provided no communication to the mailing address or email listed in my August 22, 2025 public records request. Your November 20 email is the first accessible correspondence I have received—arriving only after I issued a formal demand for compliance.

Based on the cost estimates now provided, OPRD is seeking tens of thousands of dollars for records directly related to how your agency treated an unpaid volunteer who documented institutional abuse.

The timeline is clear:
A response posted to an inaccessible system without notice.

Ninety days of complete silence to the contact information I provided.

A cost barrier large enough to function as a denial of access.

Accessible communication only after external oversight was engaged.

Given these circumstances, I am withdrawing my public records request. Your handling of the request—including the inaccessible posting, the prolonged silence, and the prohibitive cost estimate—will be documented as part of the public record of how OPRD responds when asked for transparency regarding documented volunteer abuse.

Your August 29 posting and your November 20 cost estimates are now part of the permanent record of OPRD's approach to transparency.

Robert Samuel White